

		Richard Ruiz, Robert Aguilar, Cesar Utuy, and Jennifer Romo, it is not practical for the court to determine what billing entries are challenged by Defendant. Therefore, the request to reduce the fees for the paralegals is denied. Based on the foregoing, the court reduces attorneys' fees by \$11,236.25. Tentative Ruling: The Court GRANTS Plaintiff attorneys' fees of \$28,988.25. <i>Costs</i> Plaintiff filed a memorandum of costs, claiming \$1,903.90 in costs, on 12/12/25. (ROA 115.) To challenge a memorandum of costs, the responding party must file and serve a motion to strike or to tax costs "15 days after service of the cost memorandum." (Cal. R. Ct. Rule 3.1700(b)(1).) Defendant did not file a motion to strike or tax costs. Tentative Ruling: Costs are awarded in the amount of \$1,903.90. Moving party to give notice.
10	Herrlinger vs. Gulton Court LP 2025-01523864	Motion for Order for Service on Secretary of State Plaintiff Erin Herrlinger moves for an order pursuant to Corporations Code section 1702 permitting Plaintiff to effectuate service of process on defendant Gulton Court LP by serving the office of the California Secretary of State. Corporations Code section 1702, subdivision (a) provides, "If an agent for the purpose of service of process has resigned and has not been replaced or if the agent designated cannot with reasonable diligence be found at the address designated for personally delivering the process, or if no agent has been designated, and it is shown by affidavit to the satisfaction of the court that process against a domestic corporation cannot be served with reasonable diligence upon the designated agent by hand in the manner provided in Section 415.10, subdivision (a) of Section 415.20 or subdivision (a) of Section 415.30 of the Code of Civil Procedure or upon the corporation in the manner provided in subdivision (a), (b) or (c) of Section 416.10 or subdivision (a) of

		Section 416.20 of the Code of Civil Procedure, the court may make an order that the service be made upon the corporation by delivering by hand to the Secretary of State, or to any person employed in the Secretary of State's office in the capacity of assistant or deputy, one copy of the process for each defendant to be served, together with a copy of the order authorizing such service. Service in this manner is deemed complete on the 10th day after delivery of the process to the Secretary of State.” (Corp. Code, § 1702, subd. (a) [emphasis added].) Plaintiff has submitted a declaration of counsel, Michael J. Cefali in support of the Motion. Cefali states that the California Secretary of State lists Dominique M. Morel as the agent for service of process for defendant Gulton Court LP and lists the principal and mailing address as 17511 Rainglen Lane, Huntington Beach, CA 92649. (Cefali Decl., ¶¶ 2-3.) On November 20, 2025, a registered process server from DDS Legal Support attempted service at that address but the attempt was unsuccessful, and the server was informed by an adult male that the agent and business were unknown at that address. (Cefali Decl., 4-5, Ex. A.) On November 25, 2025, counsel again accessed the Secretary of State Business Search to confirm the agent and address information, however, no changes had been made. (Cefali Decl., ¶ 6.) No alternative addresses for Defendant or its agent exist in Secretary of State records or public records databases. (Cefali Decl., ¶ 7.) Based on the foregoing, Plaintiff has demonstrated that process against defendant Gulton Court LP cannot be served with reasonable diligence. Tentative Ruling: Plaintiff Erin Herrlinger motion for an order pursuant to Corporations Code section 1702 permitting Plaintiff to effectuate service of process on defendant Gulton Court LP by serving the office of the California Secretary of State is GRANTED. Plaintiff to give notice.
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11	Belflora Maintenance Corporation vs. DeQuardo 2024-01385267	Motion for Order to Show Cause re: Contempt Against Defendant Plaintiff Belflora Maintenance Corporation’s moves for an order directing Defendant, Lianna Dequardo, to show cause why Defendant should not be held in contempt of this Court for Defendant’s willful disobedience of a Court Order awarding sanctions to Plaintiff, which was entered by this Court on October 16, 2025. Contempt, which occurs outside the presence of the court is considered an indirect contempt. (Hanson v. Superior Court (2001) 91 Cal.App.4th 75, 81.) “When the contempt is not committed in the immediate view and presence of the court, or of the judge at chambers, an affidavit shall be presented to the court or judge of the facts constituting the contempt. . .” (Code Civ. Proc. § 1211, subd. (a).) “[T]he affidavit by which a contempt proceeding is instituted, in order to sufficiently support an adjudication of contempt, must state facts constituting the offense, otherwise the court is without jurisdiction, and the facts essential to establish jurisdiction are (1) the making of the order, (2) knowledge of the order, (3) ability of the respondent to render compliance, and (4) willful disobedience of the order.” (People v. Superior Ct. for Los Angeles Cnty. (1965) 239 Cal.App.2d 99, 104.) “The affidavit is in effect a complaint, frames the issues before the court and is a jurisdictional prerequisite to the court’s power to punish.” (Koshak v. Malek (2011) 200 Cal.App.4th 1540, 1549.) A “...declaration...given under penalty of perjury... is a satisfactory substitute for an affidavit.” (In re Morelli (1970) 11 Cal.App.3d 819, 830.) Plaintiff moves on the grounds Defendant has failed to comply with the Court’s Order awarding Plaintiff monetary sanctions (“Sanctions Order”) following a hearing on Plaintiff’s Motion to Compel Discovery Responses, including Requests for Production of Documents, Form Interrogatories, and a Motion to have Requests for Admission deemed admitted. (Mahar Decl., ¶ 5, Ex. A.) The Sanctions Order required Defendant to pay Plaintiff \$4,955.55 within ninety (90) days of Notice of the Order. (Mahar Decl., ¶ 5, Ex. A.) The Notice of Sanctions Order was served on Defendant’s counsel by email on October 17, 2025. (Mahar Decl. ¶16, Ex. C.) Plaintiff sent Defendant a meet and confer letter on January 16,
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